

1 ENGROSSED HOUSE
2 BILL NO. 4051

By: Caldwell (Trey) and Kane of
the House

3 and

4 Hall and Haste of the
5 Senate

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8 An Act relating to the Oklahoma Health Care
9 Authority; amending 63 O.S. 2021, Section 5020A,
10 which relates to the Rate Preservation Fund;
11 modifying and limiting authorized uses of funds; and
12 declaring an emergency.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 63 O.S. 2021, Section 5020A, is
15 amended to read as follows:

16 Section 5020A. A. There is hereby created in the State
17 Treasury a fund for the Oklahoma Health Care Authority to be
18 designated the "Rate Preservation Fund". The fund shall be a
19 continuing fund, not subject to fiscal year limitations, and shall
20 consist of monies designated to the fund by law. All monies
21 accruing to the credit of the fund are hereby appropriated and may
22 be budgeted and expended by the Authority for the sole purpose of
23 maintaining reimbursement rates to providers purposes described in
24 subsection B of this section. Expenditures from the fund shall be

1 made upon warrants issued by the State Treasurer against claims
2 filed as prescribed by law with the Director of the Office of
3 Management and Enterprise Services for approval and payment. The
4 Administrator of the Authority may request the Director of the
5 Office of Management and Enterprise Services to transfer monies
6 between the Rate Preservation Fund and any other fund of the
7 Authority as needed for the expenditure of funds.

8 B. The Oklahoma Health Care Authority is authorized to budget
9 and expend monies from the Rate Preservation Fund as follows:

10 1. ~~For~~ Only as directed annually by enacted legislation
11 directing the scope of such utilization, for maintaining
12 reimbursement rates to providers in the event of a decrease in the
13 state's Federal Medical Assistance Percentage rate; and

14 2. Subject to the approval of the Director of the Office of
15 Management and Enterprise Services, the Oklahoma Health Care
16 Authority may transfer up to one-third (1/3) of the balance of the
17 Rate Preservation Fund in any given state fiscal year to other funds
18 of the Authority to meet cash flow needs of the state's Medicaid
19 program, so long as the monies are transferred back to the Rate
20 Preservation Fund prior to the end of the state fiscal year in which
21 they were originally transferred.

22 SECTION 2. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3 Passed the House of Representatives the 14th day of April, 2026.

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5 _____
6 Presiding Officer of the House
7 of Representatives

8 Passed the Senate the ____ day of _____, 2026.

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11 Presiding Officer of the Senate
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